

House File 711

H-1352

1 Amend the Senate amendment, H-1325, to House File 711, as
2 amended, passed, and reprinted by the House, as follows:

3 1. By striking page 1, line 5, through page 2, line 30, and
4 inserting:

5 <Section 1. Section 157.2, subsection 1, Code 2025, is
6 amended by adding the following new paragraph:

7 NEW PARAGRAPH. *h.* Persons providing services pursuant to an
8 establishment training program authorized pursuant to section
9 157.12D.

10 Sec. 2. Section 157.2, subsection 3, Code 2025, is amended
11 to read as follows:

12 3. With the exception of hair removal, manicuring, and nail
13 technology services, persons licensed under this chapter or
14 participating in an establishment training program authorized
15 pursuant to section 157.12D shall not administer any procedure
16 in which human tissue is cut, shaped, vaporized, or otherwise
17 structurally altered.

18 Sec. 3. Section 157.3, Code 2025, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 3. Notwithstanding subsection 1, a person
21 who submits satisfactory proof, signed by the supervising
22 licensees, of having completed two thousand hours of supervised
23 practice under an establishment training program pursuant to
24 section 157.12D shall be allowed to take the examination for a
25 license to practice the appropriate practice of the barbering
26 and cosmetology arts and sciences.

27 Sec. 4. Section 157.8A, Code 2025, is amended to read as
28 follows:

29 **157.8A Use of schools of barbering and cosmetology arts and**
30 **sciences.**

31 1. A school of barbering and cosmetology arts and sciences
32 may be used for purposes other than student instruction so long
33 as the other activities do not disrupt classes.

34 2. An instructor employed by a school of barbering and
35 cosmetology arts and sciences may perform barbering and

1 cosmetology arts and sciences services at the school of
2 barbering and cosmetology arts and sciences for compensation
3 while not instructing students.

4 3. The board shall adopt rules for the implementation of
5 this section.

6 Sec. 5. Section 157.10, subsection 1, Code 2025, is amended
7 by adding the following new paragraph:

8 NEW PARAGRAPH. *d.* The board may approve a course of study
9 allowing a student to simultaneously study for licenses to
10 practice both esthetics and nail technology. A student who
11 partially completes a combined course of study for licensure
12 for the practice of esthetics and nail technology is not
13 eligible for licensure for the practice of esthetics or nail
14 technology unless the student has completed the licensure
15 requirements for the practice of esthetics or nail technology.
16 The board shall adopt rules pursuant to chapter 17A for the
17 implementation of this paragraph.

18 Sec. 6. Section 157.11, subsection 3, Code 2025, is amended
19 to read as follows:

20 3. A licensed school of barbering and cosmetology arts and
21 sciences at which students or licensees practice barbering and
22 cosmetology arts and sciences is exempt from licensing as an
23 establishment.

24 Sec. 7. NEW SECTION. **157.12D Establishment training**
25 **program.**

26 1. An establishment training program is created. The
27 board shall create an establishment training program and allow
28 establishments to register to participate in the program. An
29 establishment licensed pursuant to section 157.11, including
30 an establishment operating in a residence pursuant to section
31 157.6 may participate in the program by registering with the
32 board.

33 2. An establishment that registers with the board may employ
34 persons, without regard to the person's licensure status, to
35 provide services that would otherwise require a license under

1 this chapter under the supervision of a licensee who regularly
2 provides those services. A person providing services without
3 a license must first complete two hours of education related
4 to barbering and cosmetology laws in this state and rules and
5 sanitation, as determined by the board by rule, before offering
6 services permitted under the program. The establishment owner
7 is responsible for ensuring the education, training, skills,
8 and competence of persons who provide services in the owner's
9 establishment.

10 3. An establishment participating in the establishment
11 training program shall comply with all facility and minimum
12 equipment requirements, safety and infection control
13 provisions, inspection requirements, management requirements,
14 and establishment licensing renewal requirements. The
15 department shall inspect an establishment participating in the
16 program as the department deems necessary to ensure compliance
17 with these requirements.

18 4. The establishment shall disclose in writing prior to
19 the consumer's receipt of services from an unlicensed provider
20 that the establishment is participating in the program and
21 that the provider is not licensed. The disclosure shall be
22 clearly legible and state: "This licensed establishment is
23 registered to participate in an establishment training program.
24 This establishment employs unlicensed providers who work under
25 the supervision of licensed providers. The services you are
26 receiving are from an unlicensed provider participating in this
27 program."

28 5. In addition to any other remedy provided by law, in
29 an action based on an injury alleged to have occurred in an
30 establishment participating in the establishment training
31 program, a prevailing party may recover reasonable attorney's
32 fees and receive other equitable relief as determined by the
33 court.

34 6. In addition to any other disciplinary powers established
35 pursuant to this chapter, the board may, when it has probable

1 cause to believe that human health is endangered, order an
2 establishment participating in the program to immediately cease
3 participation in the program. The board shall conduct formal
4 proceedings pursuant to this chapter to determine whether the
5 problem has been corrected, whether to suspend, revoke, or
6 reinstate the establishment's participation in the program, and
7 whether to suspend, revoke, or reinstate the establishment's
8 license.

9 7. For the purposes of this section, "*supervision*" means
10 within the physical presence of a licensee and the licensee is
11 available to assist in providing services.

12 Sec. 8. Section 157.13, subsection 1, Code 2025, is amended
13 by adding the following new paragraph:

14 NEW PARAGRAPH. *d.* When the practice is performed by a
15 person without a license under the supervision of a licensee in
16 an establishment registered with the board pursuant to section
17 157.12D.

18 Sec. 9. Section 157.13, subsection 4, unnumbered paragraph
19 1, Code 2025, is amended to read as follows:

20 If the board has reasonable grounds to believe that a person
21 or establishment which is not licensed under this chapter and
22 that is not participating in an establishment training program
23 pursuant to section 157.12D has engaged, or is about to engage,
24 in an act or practice which requires licensure under this
25 chapter, or otherwise violates a provision of this chapter, the
26 board may issue an order to require the unlicensed person or
27 establishment to comply with the provisions of this chapter,
28 and may impose a civil penalty not to exceed one thousand
29 dollars for each violation of this chapter by an unlicensed
30 person or establishment. Each day of a continued violation
31 after an order or citation by the board constitutes a separate
32 offense, with the maximum penalty not to exceed ten thousand
33 dollars.>

WULF of Black Hawk